ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	49th Commission Meeting
DATE:	5 October, 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Internal Departmental transfer – DoI	With the increasing need to strengthen the ADMD's mandate from a mere administration & management of declarations to proactive prevention & detection of illicit enrichment, the Commission highlighted the need to enhance human resource capacity in the ADMD. Further, the Commission noted that the on-going project to enhance online AD system is crucial for reinforcing the ADMD's mandate. In doing so, the ADMD would require strong team led by a senior staff in furthering its mandate besides initiating strategic collaboration with critical partners on data integration – a major aspect of AD system enhancement. Given the importance and urgency of the project, which is due for completion by the end of December 2021, the Commission noted that opening of vacant position for Chief in the ADMD would not only exhaust the limited time but also increase the risk of recruiting someone from outside the ACC with limited experience which will impede the enhancement project. In view of the above, the Commission directed the HRC to explore for internal transfer of appropriate senior candidate from within the ACC to take up the above responsibility immediately. This is expected to further strengthen the team in the ADMD. Similarly, noting the approval accorded to Puran K Dural's continuation of service on regular contract for two years, the Commission directed the Director, DoI to strategize his engagement in advisory matters and relieve from management responsibility. To this, internal succession may be implemented.
2	Invitation to attend the 10th Session of the Assembly of Parties of IACA virtually as an observer – PPS	The Commission directed the LD & PPS to attend the session as observer and accordingly apprise the Commission about its proceedings
3	Review & endorsement of final draft MoU with the OAG – PPS	The Commission endorsed the final draft MoU with following specific comments: • Delete the phrase '*the consequences for*' under clause 2.5 to avoid misinterpretation. • Delete entire clause 6.1 on TAT as suggested by the OAG. However, the Commission noted that the objective of the

		clause would be fulfilled through bilateral meetings between the Focal Team. • Check whether specifying the OAG Act 2015 in the MoU would limit from exercising Section 128 of ACAB 2011. • Check whether the section on 'confidentiality and property rights' prohibit the ACC from using/sharing information related to cases/complaints in the Annual Report or media. • Suggest appropriate dates for signing of the MoU to the OAG.
4	Endorsement on the Departmental meeting resolutions – DoPS	Against some of the Departmental meeting resolutions apprised by the Director, DoPS, the Commission decided as follows: i. Include one official from the FDD to attend all the IRC meetings as 'Observer' to facilitate effective discharge of its mandate. ii. Explore using the mobile phones procured for investigation purpose in the DoI, and if need be, procure new mobile phones for Information Enrichment. Until such time, continue with the existing practice of providing Communication Allowance of Nu. 300.00 during the conduct of Information Enrichment in the field. iii. Exchange the confiscated coins and small denomination currencies worth Nu. 2,400.00 as part of the JPLP judgment implementation into fresh notes and deposit in the ACC's Escrow Account.
5	Others i) Commission's Decision App	The Commission directed the PPS to include the review of Commission's decision maintained in the App as one of the agendas in the regular Commission Meeting. The review may be scheduled either in the first or in last week of every month.

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Commissioner **Commissioner** **Chairperson**